

ORDER CANCELLATION, WITHDRAWAL & REFUND POLICY

JSG SMILE – Jharsuguda Supplier & MSME Integrated Local Exchange

Website: www.jsghmile.in

Effective Date: [DD/MM/YYYY]

1. PURPOSE

This Order Cancellation, Withdrawal & Refund Policy (“Policy”) establishes the rules governing cancellation of orders, withdrawal of quotations, termination of procurement transactions, and refund processing on JSG SMILE (www.jsghmile.in).

The objective of this Policy is to provide a transparent and fair framework for Buyers and Suppliers while ensuring accountability throughout the procurement lifecycle.

2. NATURE OF THE PORTAL

JSG SMILE is a procurement facilitation platform established under the guidance of the District Industries Centre (DIC), Jharsuguda, Government of Odisha.

The Portal:

- Facilitates procurement interactions.
- Facilitates order tracking.
- Facilitates payment visibility.
- Facilitates transaction monitoring.

The Portal does not:

- Act as Buyer.
- Act as Supplier.
- Become a party to commercial contracts.
- Determine cancellation charges.
- Determine compensation.
- Guarantee refunds.

All commercial obligations remain solely between the Buyer and Supplier.

3. APPLICABILITY

This Policy applies to:

- RFQs
- Quotations
- Purchase Orders
- Service Orders
- Work Orders
- Product Deliveries
- Service Deliveries
- Payment Transactions

processed through JSG SMILE.

4. CANCELLATION STAGES

For the purpose of this Policy, transactions may be cancelled at the following stages:

Stage 1 – Before RFQ Submission

Buyer may freely modify or withdraw procurement requirements.

No liability shall arise.

Stage 2 – After RFQ Publication but Before Order Placement

Buyer may withdraw RFQ at any time.

Suppliers may withdraw quotations before quotation validity expires.

No cancellation charges shall apply unless separately agreed between parties.

Stage 3 – After Order Placement but Before Order Acceptance

Buyer may cancel the order.

Supplier may decline the order.

No binding supply obligation shall arise until order acceptance.

Stage 4 – After Order Acceptance but Before Dispatch

Cancellation may be permitted subject to:

- Mutual agreement.
- Applicable commercial terms.
- Compensation provisions agreed between Buyer and Supplier.

Any cancellation costs shall be borne by the responsible party as mutually agreed.

Stage 5 – After Dispatch or Service Commencement

Cancellation shall generally not be automatic.

The parties shall mutually determine:

- Return arrangements.
 - Compensation.
 - Refund eligibility.
 - Replacement requirements.
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Stage 6 – After Delivery or Service Completion

Cancellation requests shall be subject to:

- Product return policies.
 - Warranty provisions.
 - Defect verification.
 - Commercial agreements.
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5. BUYER CANCELLATION RIGHTS

The Buyer may request cancellation where:

- Procurement requirements change.
- Budget approvals are withdrawn.

- Delivery timelines are no longer required.
- Supplier defaults occur.
- Mutual agreement exists.

The Buyer shall remain responsible for obligations already incurred under accepted orders.

6. SUPPLIER CANCELLATION RIGHTS

The Supplier may request cancellation where:

- Product becomes unavailable.
- Raw material shortages occur.
- Regulatory restrictions arise.
- Force majeure events occur.
- Buyer fails to comply with agreed obligations.

The Supplier shall promptly notify the Buyer regarding cancellation requests.

7. ORDER WITHDRAWAL

Orders may be withdrawn only:

- Before acceptance.
- In accordance with mutually agreed commercial terms.
- Subject to applicable laws.

The Portal may maintain records of all withdrawal actions.

8. AUTOMATIC CANCELLATION

The Portal may automatically cancel transactions where:

- Required approvals are not completed.
- Payment is not received within prescribed timelines.
- Accounts are suspended.
- Fraud is suspected.
- Regulatory requirements are not met.

Such cancellation shall not create liability for the Portal.

9. PAYMENT-RELATED CANCELLATIONS

Where integrated payment facilities are used:

Cancellation requests may trigger:

- Payment review.
- Refund review.
- Settlement hold.
- Transaction verification.

The Portal may facilitate processing but shall not determine refund entitlement.

10. REFUND ELIGIBILITY

Refund eligibility may arise in cases of:

Eligible Scenarios

- Duplicate payments.
- Failed transactions.
- Successful cancellation before execution.
- Non-delivery.
- Supplier inability to fulfill order.
- Mutual cancellation agreement.

Non-Eligible Scenarios

- Change of mind after delivery.
 - Completed and accepted services.
 - Customized products where production has commenced.
 - Products specifically manufactured against order.
 - Cases prohibited by applicable agreements.
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11. REFUND PROCESS

Where applicable:

Step 1

Refund request is submitted.

Step 2

Supporting documentation is reviewed.

Step 3

Buyer and Supplier confirmation may be obtained.

Step 4

Payment partner verification may be conducted.

Step 5

Refund processing is initiated.

12. REFUND TIMELINES

Indicative timelines:

Transaction Type	Expected Processing Time
Failed Transaction	3–7 Business Days
Duplicate Payment	7–10 Business Days
Approved Cancellation	7–15 Business Days
Chargeback Cases	As per Banking Rules

Actual timelines may vary depending on:

- Banks
 - Payment Gateway Providers
 - Regulatory requirements
 - Verification processes
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13. T+1 SETTLEMENT IMPACT

Where settlement has not yet been completed:

- Settlement may be paused.

- Refund requests may be reviewed.
- Transaction status may be modified.

Where settlement has already been completed, refund obligations shall be determined directly between Buyer and Supplier.

14. CHARGEBACKS

Chargebacks shall be governed by:

- RBI Guidelines
- Banking Rules
- Payment Gateway Policies
- Applicable Laws

The Portal shall not determine chargeback outcomes.

15. RETURN OF GOODS

Where return of goods is agreed:

The parties shall determine:

- Return logistics.
- Inspection procedures.
- Transportation responsibilities.
- Associated costs.

The Portal shall not manage physical returns.

16. FORCE MAJEURE CANCELLATIONS

Orders may be cancelled due to:

- Natural disasters.
- Floods.
- Earthquakes.
- Fire.

- Pandemic situations.
- Government restrictions.
- Civil disturbances.
- Internet or infrastructure failures.

Neither party shall be liable for delays or cancellations resulting from force majeure events.

17. FRAUDULENT TRANSACTIONS

The Portal reserves the right to:

- Suspend transactions.
- Hold settlements.
- Restrict accounts.
- Request additional verification.
- Report suspected fraud.

Fraudulent users may be permanently removed from the Portal.

18. RECORDS AND AUDIT TRAIL

The Portal may maintain records relating to:

- Cancellation requests.
- Withdrawal requests.
- Refund applications.
- Settlement status.
- Transaction communications.

Such records may be used for audit, reporting, compliance, and legal purposes.

19. DISCLAIMER

JSG SMILE functions solely as a facilitation platform.

District Administration Jharsuguda, District Industries Centre (DIC), Government of Odisha, Technology Partner, Portal Operator, and their officers:

- Do not determine cancellation rights.
- Do not determine refund entitlement.
- Do not guarantee refund approval.
- Do not guarantee refund timelines.
- Do not act as arbitrators.

All commercial decisions remain with the Buyer and Supplier.

20. LIMITATION OF LIABILITY

District Administration Jharsuguda, District Industries Centre (DIC), Government of Odisha, Technology Partner, Portal Operator, and their officers shall not be liable for:

- Cancellation losses.
- Refund delays.
- Banking delays.
- Chargeback outcomes.
- Commercial disputes.
- Consequential damages.

Maximum liability shall be NIL to the fullest extent permitted by law.

21. GOVERNING LAW

This Policy shall be governed by the laws of India.

22. JURISDICTION

Any proceedings relating to this Policy shall be subject to the exclusive jurisdiction of competent courts located in Odisha.

23. AMENDMENTS

JSG SMILE reserves the right to amend this Policy at any time.

Updated versions shall become effective upon publication on the Portal.

24. ACCEPTANCE

By registering, posting requirements, submitting quotations, placing orders, accepting orders, making payments, requesting cancellations, seeking refunds, or otherwise using JSG SMILE (www.jsghmile.in), Users acknowledge that:

1. They have read and understood this Policy.
2. They agree to comply with the cancellation and refund framework.
3. They understand that JSG SMILE acts solely as a facilitation platform.
4. They accept that refund eligibility remains subject to commercial agreements and applicable laws.